

Confidentiality Agreement

Parties

[REDACTED] company number 3072505, having its registered office at [REDACTED], New Zealand (the **Disclosing Party**)

Email address: [REDACTED]

and

University of Auckland, a university constituted under the University of Auckland Act 1961 and a tertiary education provider under the Education and Training Act 2020, of 22 Princes Street, Auckland, New Zealand (the **Receiving Party**)

Email address: contracts@auckland.ac.nz

Background

In consideration of the Disclosing Party agreeing to make Confidential Information available to the Receiving Party, and its Representatives, the Receiving Party agrees to the terms contained in this confidentiality agreement (**Agreement**).

1. Definitions

1.1 The following definitions apply for the purposes of this Agreement:

Applicable Law means any law, regulation, order or request of any governmental, official or regulatory body (including the rules of any relevant financial market or stock exchange), or any court of competent jurisdiction.

Approved Purpose means the Disclosing Party's participation in the Receiving Party's Business Analytics Applied Project including the provision of workplace experience to the [REDACTED]

Confidential Information means any Information in connection with the Disclosing Party or its Group which is made available by or on behalf of the Disclosing Party to the Receiving Party or its Representatives for the Approved Purpose whether before or after the date of this Agreement, and includes:

- (a) the existence and the terms of this Agreement;
- (b) the fact that Confidential Information has been or may be provided to the Receiving Party or its Representatives; and
- (c) the existence, content or status of any discussions, negotiations or agreements connected with the Approved Purpose including any type of offer made by or on behalf of any party or Group member in connection with the Approved Purpose.

but does not include information which:

- (a) is publicly available at the time of its disclosure under this Agreement; or

- (b) becomes publicly available following disclosure under this Agreement (other than as a result of disclosure contrary to the terms of this Agreement); or
- (c) was lawfully in the possession of the Receiving Party prior to disclosure under this Agreement (as can be demonstrated by written records or other reasonable evidence) and is free of any restriction owed to the Disclosing Party, as to its use or disclosure; or
- (d) following disclosure under this Agreement, becomes available to the Receiving Party (as can be demonstrated by written records or other reasonable evidence) from a source other than Disclosing Party, which source is not, to the knowledge of the Receiving Party, bound by any obligation of confidentiality to the Disclosing Party, in relation to such information; or
- (e) is independently developed by the Receiving Party following disclosure under this Agreement without use of or reference to the Confidential Information.

Group means, in relation to a party, that party and its Related Companies.

Information means information in any form including writing, visual, machine-readable form or orally and includes any copies of such information and any information, analyses, compilations, notes, studies, memoranda or other documents derived from, containing or reflecting such information.

Related Company has the meaning given to that term in section 2(3) of the Companies Act 1993, read as if reference to "company" in that subsection included any body corporate or other entity, wherever incorporated.

Representative means in relation to a party, each member of that party's Group and the directors, officers, employees, contractors or advisers of that party or its Group.

Termination Date: is the earliest of the date:

- (a) which is two years from the date of this Agreement;
- (b) of execution of a definitive agreement in relation to the Approved Purpose; or
- (c) the parties agree, in writing, that the obligations imposed by this Agreement, cease.

1.2 For the purposes of this Agreement:

- (a) where the context allows, a reference to a **party** means either [REDACTED] or University of Auckland (as the case may be); and
- (b) the meaning of general words is not limited by specific examples introduced by **includes, including, for example, such as** and similar expressions.

2. Undertakings in respect of Confidential Information

2.1 Subject to clause 3, the Receiving Party undertakes that it will:

- (a) keep the Confidential Information secret and confidential and not disclose it to any person other than its Representatives, in compliance with the terms of this Agreement, who reasonably require it for the Approved Purpose;
- (b) use the Confidential Information solely for the Approved Purpose in accordance with this

Agreement and not for any other purpose;

- (c) keep the Confidential Information secure and in such a way so as to prevent unauthorised access by any third party;
- (d) not make any copies of the Confidential Information or reproduce it in any form except for the purpose of supplying the same to those to whom disclosure is permitted in accordance with this Agreement; and
- (e) promptly inform the Disclosing Party if it becomes aware that the Confidential Information has been disclosed to (or accessed by) an unauthorised party.

2.2 Neither party may use the names, trademarks or logos of the other party or its personnel without the other party's prior written consent.

3. Permitted disclosure of Confidential Information

3.1 The provisions of clause 2 do not restrict any disclosure by the Receiving Party of the Confidential Information to the extent that it is:

- (a) required by Applicable Law provided that, so far as it is lawful and practical to do so prior to such disclosure, the Receiving Party will promptly notify the Disclosing Party and will:
 - (i) provide reasonable assistance to enable the Disclosing Party (at the Disclosing Party's cost) to contest the disclosure or to seek any other appropriate remedy if applicable, and/or
 - (ii) consult with, and comply with the reasonable directions of, the Disclosing Party regarding the nature, timing and content of the proposed disclosure; or
- (b) consented to in writing by the Disclosing Party prior to such disclosure.

4. Compliance by Representatives

4.1. The Receiving Party undertakes to procure that its Representatives will observe the obligations and undertakings contained in this Agreement as if each of its Representatives were a party to this Agreement and agrees to be liable for any breach of such obligations and undertakings by any of its Representatives.

5. Return or destruction of Confidential Information

5.1. The Receiving Party undertakes that, subject to clause 6, it will at its expense, promptly upon receipt of a written request from the Disclosing Party:

- (a) return or destroy (at its option) all of the Confidential Information provided to it and its Representatives pursuant to this Agreement, without keeping any copies of any of the Confidential Information;
- (b) procure the destruction of all analyses, compilations, notes, studies, memoranda and other documents prepared by it and by each of its Representatives to the extent that the same contain, reflect or derive from any of the Confidential Information; and
- (c) so far as it is practicable to do so (but, in any event, without prejudice to the obligations of confidentiality contained in this Agreement), expunge any of the Confidential Information from any readily accessible computer, server, word processor or other device used by it and

each of its Representatives. For the avoidance of doubt, this does not require the deletion of copies of the Confidential Information made during routine backup processes.

- 5.2 At the request of the Disclosing Party, the Receiving Party undertakes to supply written confirmation confirming that the requirements of clause 5.1 have been fully complied with.

6. Exception to return or destruction of Confidential Information

- 6.1. The obligation to return, destroy or expunge the Confidential Information will not apply to the Receiving Party to the extent that:

- (a) the Confidential Information is contained in internal board or committee papers or minutes;
- (b) it is required to retain the Confidential Information in order to comply with any Applicable Law; or
- (c) in the case of a Representative who is a professional adviser, it is required to retain the Confidential Information for professional standards or indemnity insurance requirements.

- 6.2 Information retained under clause 6.1 must not be used for any purpose other than for the record-keeping purposes set out above and remains subject to the confidentiality obligations set out in this Agreement.

7. Ownership

- 7.1. Except as may be set out in the terms of any definitive agreements entered into in connection with the Approved Purpose, Confidential Information remains the property of the Disclosing Party and the disclosure of any Confidential Information will not confer on the Receiving Party any rights (including any intellectual property rights) over the disclosed Confidential Information whatsoever.
- 7.2. The Receiving Party undertakes that it will not assert any rights in respect of, or contest the Disclosing Party's ownership of, the Confidential Information.

8. No liability for Confidential Information

- 8.1. The Confidential Information is provided on the basis that the Receiving Party will be responsible for its own independent assessment of that information.
- 8.2 Except as may be set out in the terms of any definitive agreements entered into in connection with the Approved Purpose, the Disclosing Party:
- (a) has no responsibility for, or makes any representation, express or implied, or gives any warranty or assumes or acknowledges any liability with respect to, the accuracy, adequacy or completeness of the Confidential Information or any oral communication in connection with the Confidential Information; or as to materiality of any Confidential Information in the context of the Approved Purpose; or
 - (b) is not obliged to update any such information or to correct inaccuracies in such information; or
 - (c) is not obliged to disclose any kind or quantity of information to the Receiving Party.

8.3 The maximum aggregate liability of the Receiving Party to the Disclosing Party under or in connection with this Agreement is limited to [REDACTED].

9. Personal Information

9.1. To the extent any personal information about identifiable individuals is made available in connection with the Approved Purpose, then the Receiving Party and its Representatives will comply with the Privacy Act 2020 (NZ), and all other Applicable Laws which regulate the collection, storage, use and/or disclosure of personal information.

10. Conduct of Process

10.1. Except as may be set out in the terms of any definitive agreements entered into in connection with the Approved Purpose, each party acknowledges that any party may in its sole and absolute discretion terminate discussions and negotiations in relation to the Approved Purpose at any time.

11. Duration

11.1. The obligations set out in this Agreement will, subject to clause 11.2, continue in full force and effect from the date of this Agreement and will end on the Termination Date.

11.2. Notwithstanding clause 11.1, the Receiving Party agrees that the obligations under clauses 5, 6, 7, 8 and 9 survive termination of this Agreement and will continue for a period of 5 years from the Termination Date.

12. Notices

12.1. Every notice or other communication for the purposes of this Agreement will be in writing and delivered by:

- (a) delivery to the registered office or other notified physical address of the relevant party, which is deemed to be received at the time of delivery; or
- (b) sending it by email to the email address of the relevant party, which is deemed to be received, unless the sender receives a failed delivery notice, at time of transmission if sent between the hours of 9am and 5pm (local time) on a local working day, and if not, at 9am (local time) on the next local working day. For this purpose, "local time" is the time in the place of receipt of the notice, and a "local working day" is a normal working day in that place.

13. Amendments

13.1. No (a) amendment to this Agreement, (b) agreement between the parties for the purpose of, or referred to in, this Agreement, or (c) consent or approval for the purposes of, or referred to in, this Agreement, is effective unless it is in writing and signed (if sub-clause (a) or (b) apply) by the parties or (if sub-clause (c) applies) the party required to give the consent or approval.

14. Remedies

14.1. Without prejudice to any other rights or remedies that a party may have, each party acknowledges and agrees that damages may not be an adequate remedy for any breach of the provisions of this Agreement and that the persons entitled to the benefit of this agreement may be entitled to seek the remedies of injunction, specific performance and other equitable relief for any threatened or actual breach of any such provision and that no proof of special damages

will be necessary for the enforcement by such persons of their rights under this Agreement. Nothing contained in this clause will, however, be construed as a waiver by a party of any other rights including the right to seek damages for a breach of the provisions of this Agreement.

15. Waiver

- 15.1. No failure or delay by any party in exercising any of its rights under this Agreement will operate as a waiver of such party's rights, nor will any single or partial exercise preclude any other further exercise of such rights.

16. Assignment

- 16.1. No party may assign or transfer its rights under this Agreement in whole or in part to any third party without the prior written consent of the other party.

17. Severability

- 17.1. Each provision of this Agreement is separate and severable and enforceable accordingly. If any provision or part of a provision is found to be void, invalid or otherwise unenforceable, the remaining part of the provisions will continue in full force and effect.

18. Counterparts

- 18.1. This Agreement may be signed in counterparts and all counterparts taken together constitute one document.

19. Entire Agreement

- 19.1. This Agreement constitutes the entire agreement between the parties relating to the subject matter of this Agreement and supersedes and cancels any previous agreement, understanding or arrangement whether written or oral.

20. Governing Law

- 20.1 This Agreement will be governed by and construed in accordance with the laws of New Zealand. Each party irrevocably submits to the exclusive jurisdiction of the courts exercising jurisdiction in New Zealand in relation to all matters arising out of or in connection with this Agreement.

Signed by:

 by:	Signed for and on behalf of the University of Auckland by:
Authorised signatory	Authorised signatory
Full name of authorised signatory	Full name of authorised signatory

Date: